UNITED STATES COURT OF INTERNATIONAL TRADE

BGH EDELSTAHL SIEGEN GMBH, Plaintiff, v. UNITED STATES, Defendant, and ELLWOOD CITY FORGE COMPANY, et. al., Defendant-Intervenors.	))))))))	Ct. No. 26-01186 Before: The Honorable Mark A. Barnett, Chief Judge

BGH EDELSTAHL SIEGEN GMBH

MOTION FOR JUDGMENT UPON THE AGENCY RECORD

Pursuant to Rule 56.2 of the Rules of this Court, Plaintiff, BGH Edelstahl Siegen GmbH ("BGH"), respectfully moves this Court for an order granting movant judgment on the agency record against Defendant, the United States (representing the U.S. Department of Commerce ("Commerce")), including, but not limited to the following relief:

- Remand to Commerce to reconsider its determination treating home market sales of certain forged steel products not meeting the definitions of fluid end blocks in "finished condition" and "unfinished condition" contained in the product scope description as subject merchandise;
- Remand to Commerce to reconsider its application of a modified differential pricing analysis in this administrative review;
- Granting BGH such other relief as the Court may deem appropriate.

A memorandum of points and authorities in support of this motion is being filed contemporaneously with this motion.

WHEREFORE, for the reasons described in this motion and the accompanying memorandum in support thereof, BGH respectfully requests that the Court enter judgment in its favor. A proposed order is submitted with this motion for the Court's consideration.

Dated: September 18, 2026

Respectfully submitted,

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RULE 56.2 MEMORANDUM IN SUPPORT OF MOTION FOR JUDGMENT UPON THE AGENCY RECORD

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I. RULE 56.2 STATEMENT

Pursuant to Rule 56.2(c)(1) of the Rules of this Court, Plaintiff, BGH Edelstahl Siegen GmbH ("BGH" or "BGH Siegen"), hereby states the administrative decision sought to be reviewed and the issues of law presented:

A. Administrative Determinations Sought to be Reviewed

The U.S. Department of Commerce ("Commerce") published its contested final results of administrative review in the Federal Register on January 27, 2026. *Forged Steel Fluid End Blocks from the Federal Republic of Germany: Final Results of the Antidumping Duty Administrative Review; 2023*, 91 Fed. Reg. 3433 (Jan. 27, 2026) ("Final Results"); see also accompanying Issues and Decision Memorandum (Jan. 20, 2026) ("Final IDM") (PR 3 & 4).[1] The weighted-average dumping margin assigned to BGH was 11.92%.

B. Issues Presented

1. Issue One: Whether Commerce erred in treating home market sales of certain forged steel products not meeting the definitions of fluid end blocks in "finished condition" and "unfinished condition" contained in the product scope description as subject merchandise?
2. Issue Two: Whether Commerce's revised differential pricing analysis, applied late in this administrative review, is contrary to law and unsupported by substantial evidence on the record?

II. STATEMENT OF FACTS

This proceeding involves the administrative review of the antidumping order on Forged Steel Fluid End Blocks from Germany for the period covering January to December 2023 (i.e., calendar year 2023).

A. Original Investigation

The product scope applicable to this current administrative review has its genesis in the antidumping and countervailing duty petitions filed by the FEB Fair Trade Coalition, Ellwood Group and Finkl Steel ("Petitioners") in December 2019. These original petitions described the scope of subject merchandise as fluid end blocks ("FEBs"), whether unfinished, semi-finished, or finished. Commerce had numerous questions on how to identify unfinished and semi-finished fluid end blocks, and the Petitioners responded to these questions by submitting an amendment

[1] In accordance with the Chambers Procedures of this Court, citations to the confidential record are designated as "CR" and citations to the public record are designated as "PR".

to their antidumping and countervailing duty petitions. See Amendment of Petitions and Response to Commerce's Supplemental Questions, (Dec. 30, 2019) ("Petition Amendment") (contained in Section A Questionnaire Response, App. A-2 (June 20, 2024) ("Section A Response")) (PR 58).

For example, Commerce specifically directed Petitioners to "add a definition of what constitutes an unfinished fluid end block in the scope language for clarification purposes." Petition Amendment, 4 (PR 58). In response to this request, Petitioners submitted an amended scope definition removing the reference to "semi-finished" fluid end blocks and adding specific definitions for "finished condition" and "unfinished condition." These definitions state:

> A fluid end block may be imported in finished condition (i.e., ready for incorporation into a pump fluid end assembly without further finishing operations) or unfinished condition (i.e., forged but still requiring one or more finishing operations before it is ready for incorporation into a pump fluid end assembly).
>
> Request For Information, App. III (May 14, 2024) ("Questionnaire") (PR 65).

Commerce also asked Petitioners to "Please expand your discussion of the domestic like product to explain why unfinished and semi-finished fluid end blocks should be part of the same domestic like product as finished fluid end blocks." Petition Amendment, 5 (PR 58). Petitioners responded that:

> The product scope covers FEBs "whether in finished or unfinished form." All FEBs - whether in finished or unfinished form - comprise a single like product.
>
> The Commission has explained that its "semi-finished analysis generally is appropriate for consideration of whether to define a like product as encompassing both upstream (i.e., semifinished) and downstream (i.e., finished) products." The five factors considered under this analysis are: (1) whether the upstream article is dedicated to the production of the downstream article, or has independent uses; (2) whether there are perceived to be separate markets for the upstream and downstream article; (3) differences in the physical characteristics and functions of the upstream and downstream articles; (4) differences in the cost or value of the vertically differentiated articles; and (5) the significance and extent of the process used to transform the upstream article into the downstream article.
>
> The act of forging steel of a particular chemistry, within the dimensional ranges referenced in the scope, imparts the essential character of the fluid end block. Once these essential operations are performed, the FEB is dedicated for eventual use in the fluid end assembly of a hydraulic pump. Furthermore, there are no separate markets or functions for unfinished FEBs as distinct from finished FEBs - i.e., they are all sold to pump manufacturers. The only difference is the extent to which the forger or the pump manufacturer elects to perform the finishing functions. Finally, while such finishing operations are not trivial, the cost and value of the fluid end block is principally defined by the manufacturing operations performed by the forger in producing the unfinished FEB.
>
> Id. at 6-7 (citations omitted) (emphasis added) (PR 58).

Representatives for the Petitioners also gave sworn testimony on the limited nature of the product scope at the Staff Conference of the U.S. International Trade Commission ("ITC")

during the original injury investigation on January 9, 2020. In response to questions posed by James Stamps, ITC International Trade Analyst, petitioners' representatives stated as follows:

> MR. STAMPS: Thank you. Can unfinished FEB forgings be used for anything else other than for the production of finished FEBs?
>
> MR. SHIRLEY: Mark Shirley, Finkl Steel. No. Once it's forged out to a block like Mr. Boyd described, it is fully dedicated to becoming an FEB.

III. SUMMARY OF ARGUMENT

A. Product Scope

In its final results, Commerce improperly treated certain forged products (Military Equipment Forgings and forged bars) sold in the home market as "subject merchandise" and included sales of these products in its margin calculations even though these products did not meet the definitions of fluid end blocks in "finished condition" and "unfinished condition" contained in the product scope description. The definitions of "finished condition" and "unfinished condition" were specifically added to the product scope at the request of Commerce in order to clarify "what constitutes an unfinished fluid end block in the scope language." See Petition Amendment, 4-5 (PR 58). These definitions also embodied Petitioners' sworn statements that "unfinished fluid end blocks" were "dedicated for eventual use in the fluid end assembly of a hydraulic pump" and that "there are no separate markets or functions for unfinished FEBs as distinct from finished FEBs." Id. at 6. Accordingly, these definitions serve as limiting requirements that must be fulfilled in determining subject merchandise and form a crucial part of the product scope description.

Commerce therefore erred when it simply ignored these specific definitions of "finished condition" and "unfinished condition" in determining that Military Equipment Forgings and forged bars fell within the scope description of the antidumping duty order. See *Eckstrom Indus. v. United States*, 254 F.3d 1068, 1073 (Fed. Cir. 2001) (stating that Commerce errs when it treats limiting language in the scope of an antidumping order as mere surplusage).

Commerce's inclusion of Military Equipment Forgings and forged bars within the scope of this proceeding also serves to expand the scope beyond the limits of the ITC injury determination in contravention of *Wheatland Tube*. See *Wheatland Tube Co. v. United States*, 973 F. Supp. 149, 158 (CIT 1997), *aff'd*, 161 F.3d 1365 (Fed. Cir. 1998) (citing 19 U.S.C. § 1673 (1994)). Having argued a narrow construction of the product scope in order to obtain findings of material injury, Petitioners cannot now seek a broader interpretation of the product scope during enforcement of the orders in an administrative review.

B. Differential Pricing Methodology

Commerce's introduction of a modified differential pricing methodology at the end of this proceeding, long after issuance of the preliminary results and the close of briefing, violated BGH's rights of due process. Commerce's revised differential pricing analysis also continues to suffer from the same lack of statistical analysis and significance as found by the U.S. Court of Appeals for the Federal Circuit in *Marmen*. Indeed, in abandoning all statistical criteria and simply applying irrebuttable thresholds, Commerce has made its analysis less precise and incapable of determining any pattern of significant price differences as required by statute. The revised methodology is in no way tailored to the facts on the record of this administrative review. The revised methodology is therefore contrary to law and unsupported by substantial evidence on the record.

IV. ARGUMENT

A. Standard of Review

Courts exercise their independent judgment in deciding statutory meaning and in deciding whether an agency has acted within its statutory authority. See, *Garg Tube Exp. LLP v. United States*, 740 F. Supp. 3d 1355, 1365 (CIT 2024) (citing *Loper Bright Enterprises v. Raimondo*, 144 S.Ct. 2244, 2263 & 2273 (2024)). When reviewing Commerce's determination concerning the description of products under review in a proceeding, the question of whether the unambiguous terms of the scope language control or whether some ambiguity exists is a question of law. *OMG, Inc. v. United States*, 972 F.3d 1358, 1363 (Fed. Cir. 2020). The question of whether a product meets the unambiguous scope terms presents a question of fact reviewed for substantial evidence. *Id.* at 1364. Substantial evidence is "such relevant evidence as a reasonable mind might accept as adequate to support a conclusion." *Eckstrom Indus., Inc. v. United States*, 254 F.3d 1068, 1071 (Fed. Cir. 2001).

Each administrative review is a separate segment of an antidumping proceeding with its own, unique administrative record. *Jiaxing Brother Fastener Co. v. United States*, 822 F.3d 1289, 1299 (Fed. Cir. 2016). A determination must be supported by substantial evidence based on the administrative record of the specific review in question. *Shenzhen Xinboda Indus. Co. v. United States*, 456 F. Supp. 3d 1272, 1285 n.22 (CIT 2020).

Judicial review of agency action is limited to "the grounds that the agency invoked when it took the action." *Michigan v. EPA*, 576 U.S. 743, 758 (2015) (citing *Sec. & Exch. Comm'n v. Chenery Corp.*, 318 U.S. 80, 87 (1943)). An "administrative order cannot be upheld unless the grounds upon which the agency acted in exercising its powers were those upon which its action

can be sustained." *Chenery*, 318 U.S. at 95. "An agency's determination thus cannot be sustained on the basis of a rationale supplied after the fact - whether by the agency's litigation counsel, by another party, or by the court." *Borusan Mannesmann Boru Sanayi Ve Ticaret A.S. v. United States*, 222 F. Supp. 3d 1255, 1267 (CIT 2017) (citing *Burlington Truck Lines, Inc. v. United States*, 371 U.S. 156, 168-69 (1962)).

An agency violates the arbitrary and capricious standard when it fails entirely to consider a party's arguments. See *Provisur Techs., Inc. v. Weber, Inc.*, 50 F.4th 117, 123-24 (Fed. Cir. 2022) (finding that the Patent Trial and Appeal Board violated the APA with its failure to address a party's arguments regarding patent invalidity and remanding for further proceedings). A court may not take the place of the agency by analyzing and disposing of such forgotten issues. Rather, the court must remand such issues back to the agency for further consideration.

V. CONCLUSION AND PRAYER FOR RELIEF

For the reasons stated above, Commerce's final results are not supported by substantial evidence on the administrative record or in accordance with the law or other applicable legal standards. We therefore respectfully request that the Court remand this case to Commerce for redetermination with instructions consistent with the arguments set forth above and grant BGH such other further relief as the Court may deem appropriate.

Dated: September 18, 2026

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

This brief has been prepared using a proportionally spaced typeface (("Times New Roman", "Liberation Serif"), 12-point). In accordance with the Standard Chambers Procedures of this Court, the undersigned certifies that this brief contains 1,911 words, excluding the parts of the brief exempted by Chambers Procedures 2(B)(1)(c). The count includes headings, footnotes and quotations.

Dated: September 18, 2026

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